

Sonpal Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2020 · Writ-C No. 521 of 2020 · **Writ disposed; objections to EE; speaking order; s.127 open**

HEADNOTE

A writ seeking to quash a recovery citation of Rs. 2,35,031 was disposed of without examining the demand. The consumer was directed to appear before the Executive Engineer with objections and evidence; a speaking final order was to follow; coercive recovery was stayed for a limited period; and an appeal under Section 127 of the Electricity Act, 2003 remained open if the consumer was aggrieved by that order. Non-appearance would revive the demand automatically.

FACTUAL SUMMARY

Sonpal Singh filed a writ petition in the Allahabad High Court seeking to quash recovery proceedings on a citation dated 5 December 2019 issued by respondent no. 3, demanding Rs. 2,35,031 and other charges. He alleged that the electricity authorities were taking coercive action without giving him an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

objections, speaking final order, and s.127 after recovery citation

HOLDING

Without deciding the demand, the Court directed the petitioner to appear on 27 January 2020 before respondent no. 4, the Executive Engineer, with his objection and evidence. Respondent no. 3 was then to pass a speaking and reasoned final order within four weeks of considering those objections. Coercive action was stayed for seven weeks or until disposal of the objection, whichever was earlier. If aggrieved by the final order, the petitioner could appeal under Section 127 of the Electricity Act, 2003. Failure to appear and file the objection would revive the demand notice automatically. The writ was disposed of. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the recovery citation, the Court kept the statutory appeal under Section 127 of the Electricity Act, 2003 open if the consumer was aggrieved by that order, and did not quash or uphold the demand on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION OF RS. 2,35,031 WAS ISSUED AFTER HEARING AND IN ACCORDANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a lenient view and routed the dispute to objections, a speaking final order, and a possible Section 127 appeal, without examining the demand or the alleged Code breaches. ¶ 1